

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 23, 2026, AT 8:30 A.M.

2. S-CV-0047142 LEIBUNDGUTH, BRIAN v. SCHOCKLEY, RICHA

This tentative ruling is issued by the **Honorable Charles D. Wachob**. If oral argument is timely requested, it will be heard on **July 23, 2026 at 8:30 a.m. in Department 2**. Department 2 is located at 101 Maple Street, Auburn, California 95603.

Motion to Tax Costs

Plaintiff moves to tax costs totaling \$89,271.42 from defendant's costs memorandum filed on March 27, 2026. More specifically, plaintiff moves to tax \$88,996.40 in expert costs and \$275.02 in certain filing fees. Defendant opposes the motion.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) A "prevailing party" is defined to include "a defendant as against those plaintiffs who do not recover any relief against that defendant." (Code Civ. Proc., § 1032, subd. (a)(4).) Code of Civil Procedure section 1033.5 specifies allowable costs and prohibited costs. (Code Civ. Proc., § 1033.5, subds. (a) [allowable costs], (b) [disallowed costs].) Costs neither allowed nor disallowed "may be allowed or denied in the court's discretion" provided they are "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation" and "reasonable in amount." (Code Civ. Proc., § 1033.5, subds. (c)(4), (c)(2)–(3).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. Cal. State Auto. Assn.* (1993) 19 Cal.App.4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Id.* at pp. 774–76.) When the reasonableness of particular items is challenged, conclusory allegations do not satisfy the objecting party's burden. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) Here, as the jury returned a verdict for defendant as against plaintiff and judgment was entered accordingly on March 12, 2026, defendant is the prevailing party in this action and entitled to recover costs.

The court now address the challenged costs amounting to \$89,271.42.

Expert costs (\$88,996.40)

Plaintiff challenges all expert costs defendant claims because they are not allowable costs unless ordered by the court pursuant to Code of Civil Procedure section

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1033.5(b)(1). A review of the court's file reveals defense experts were not court ordered.

Defendant presents evidence, however, that she made three statutory offers to compromise pursuant to Code of Civil Procedure section 998, the first of which was made on July 12, 2024, and that plaintiff declined all three offers. (Doyle Decl., ¶¶ 2–4 and Exhs. 1–3.) “If an offer made by a defendant is not accepted and the plaintiff fails to obtain a more favorable judgment or award, the plaintiff shall not recover their postoffer costs and shall pay the defendant's costs from the time of the offer.” (Code Civ. Proc., § 998, subd. (c)(1).) “In determining whether the plaintiff obtains a more favorable judgment, the court or arbitrator shall exclude the postoffer costs.” (*Id.* at subd. (c)(2)(A).) Defendant has met her burden of establishing a statutory basis for expert costs. Accordingly, defendant may recover expert costs incurred after July 12, 2024.

The court must still determine that these costs are reasonably necessary for the defense of this matter and in a reasonable amount. (Code Civ. Proc., § 1033.5, subd. (c)(2), (3).) Defendant's opposition concedes certain expert costs she included in her costs memorandum pre-date the offer date of July 12, 2024, which a careful review of defendant's evidence confirms. Defendant voluntarily withdraws her request for \$2,600 in costs pertaining to Karen Flinn-Fowler, \$19,178.32 in costs pertaining to Edward Fatzinger, and \$1,102.50 in costs pertaining to Patrick DeLangis.

The court also observes that defendant is seeking costs totaling \$33,692.45 pertaining to witness Dr. Michael Fry. The court has carefully reviewed defense exhibits 4 and 5, which includes that Dr. Fry billed for 8 hours of trial testimony on May 5, 2026, along with travel time and travel expenses amounting to \$25,781.45 in one day. However, a review of the court file reflects that Dr. Fry testified for a mere 1 hour and 40 minutes on May 5, 2026. (Trial minutes, May 5, 2026, pp. 2–3.) The court finds the amount of costs incurred by this one witness on May 5, 2026 to be excessive and unreasonably incurred for the defense of this litigation and that a reduction is necessary. The court taxes expert costs relating to Dr. Fry in the amount of \$19,781.45.

Plaintiff also challenges costs pertaining to witness Patrick DeLangis, a witness defendant withdrew in 2024. While witness DeLangis did not testify at trial, defendant sufficiently explains these fees were reasonably incurred for assisting in trial preparation. The motion to tax costs is denied as to this witness.

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Filing fees (\$275.02)

Plaintiff challenges several specific filing fees for three ex parte applications to continue trial, a stipulation and order, a remote appearance fee, and two substitution of counsel filings. Filing and motion fees are allowable costs. (Code Civ. Proc., § 1033.5, subd. (a)(1).) A remote appearance fee is neither allowable nor prohibited, so it may be allowed or denied in the court's discretion. (Code Civ. Proc., § 1033.5, subd. (c)(4).) Here, the filing fees appear to be proper charges, so the burden to show that they were not reasonable or necessary to the litigation is on the plaintiff. Plaintiff falls short of that burden. As remote appearances are commonly used in courts throughout the state and typically result in lower litigation costs generally, the court finds the remote appearance fee to be reasonably incurred and reasonably necessary for the litigation. The motion to tax filing fees is denied.

Based on the foregoing, plaintiff's motion to tax costs is granted in part. Costs are taxed in the amount of \$42,662.27 (\$22,880.82 as withdrawn by defendant and \$19,781.45 as taxed by the court). The motion is otherwise denied, and defendant is awarded costs in the total amount of \$69,531.63.

3. S-CV-0047160 GUINASSO, FRANCES v. CITY OF LINCOLN

The petition to approve compromise of minor's claim is dropped from calendar as no moving papers were filed with the court.

4. S-CV-0053111 LEROY, JOSEPH v. PICKETT, RYAN

The motion to challenge plaintiffs' work product clawback is continued to **October 8, 2026, at 8:30 a.m. in Department 3.**

5. S-CV-0054631 PTAK, CRYSTAL v. THOMAS, KIRA

If oral arguments are requested, they shall be heard on **Friday, July 24, 2026, at 8:30 a.m. in Department 3.**

Motion to be Relieved as Counsel

The motion to be relieved as counsel for plaintiffs Crystal Ptak and Olver Jouin by Leah Kestrel Finke is granted, effective upon the filing of proof of service of the signed order after hearing on the clients, Crystal Ptak and Oliver Jouin. (Code Civ. Proc. § 284, subd. (2); Cal. Rules of Court, rule 3.1362.) The court notes the motion does not